

K.Ashika vs N.V.Gnanaprakasam on 4 March, 2022

Author: P.T.Asha

Bench: P.T.Asha

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 04.03.2022

CORAM

THE HONOURABLE Ms. JUSTICE P.T.ASHA

Tr.C.M.P.No.7 of 2022
and
C.M.P.No.285 of 2022

K.Ashika

... Pet

-Vs-

N.V.Gnanaprakasam

... Res

PRAYER: Petition filed under Section 24 of the Code of Civil Procedure, to withdraw H.M.O.P.No.43 of 2020 on the file of the learned Sub Judge, Tiruttani and transfer the same to the file of the learned Sub Judge, Arakkonam to be heard on H.M.O.P.No.175 of 2021 pending on its file.

For Petitioner : Mr.J. Prithivi
For Respondent : Mr.M.Aloysius Raja Pragash

1/6

<https://www.mhc.tn.gov.in/judis>

Tr.C.

ORDER

The wife is the petitioner before this Court seeking to withdraw H.M.O.P.No.43 of 2020 filed by the husband on the file of the learned Sub Judge, Tiruttani under Section 12 of the Hindu Marriage Act, 1955, as void and transfer the same to the file of the learned Sub Judge, Arakkonam to be heard along with H.M.O.P.No.175 of 2021 filed by the wife for restitution of conjugal rights pending on its file.

2.The marriage between the petitioner and the respondent took place on 05.03.2020 at S.J.S. Thirumana Mandapam, Sholinghur, as per the customs. Out of wedlock, they had a daughter. Thereafter, H.M.O.P.No.43 of 2020 was filed by the husband on the file of the learned Sub Judge, Tiruttani under Section 12 of the Hindu Marriage Act, 1955. The petitioner/wife filed a petition in M.C.No.1 of 2021 on the file of the learned Judicial Magistrate, Sholinghur for interim maintenance.

<https://www.mhc.tn.gov.in/judis>

3.The petitioner/wife would seek to have the transfer on the following grounds:

“(a)The petitioner is residing at Sholinghur with her daughter and is dependent on her aged parents for her day to day expenses.

(b)The respondent husband has not provided any maintenance either to the petitioner or to his minor daughter and therefore, for every need the petitioner has to look to her aged parents.

(c)The respondent/husband and his family members being influential persons in Tiruttani and are pressurising the petitioner to submit to a decree as prayed for by them in H.M.O.P.No.43 of 2020.”

4.The respondent/husband had filed his counter denying the allegations made against him. He would submit that the petitioner herself has received the petition in H.M.O.P.No.43 of 2020 and had <https://www.mhc.tn.gov.in/judis> appeared for several hearings. She has also obtained Aadhaar Card at the address, namely, No.52/1, Sethuvarakagapuram Village, Dhamaneri, Veeramangalam, Pallipattu Taluk, Thiruvallur District. The petitioner has also chosen the jurisdiction and lodged a complaint within the jurisdiction of Tiruttani region. In fact, the petitioner has filed the Maintenance Case M.C.No.1 of 2021 before the Judicial Magistrate, Sholinghur, though she has to file the same at Tiruttani.

5.Heard the learned counsel for the petitioner and the learned counsel for the respondent and perused the papers.

6.Admittedly, the respondent husband has not given any maintenance constraining the petitioner to file Maintenance Case at Sholinghur since she is residing there. Therefore, considering the fact that the petitioner/wife is residing at Sholinghur with her minor daughter, this Court is of the view that in the interest of Justice H.M.O.P.No.43 of 2020 pending on the file of the learned Sub Judge, Tiruttani, is withdrawn and transferred to the file of the learned Sub

<https://www.mhc.tn.gov.in/judis> Judge, Arakkonam to be heard along with H.M.O.P.No.175 of 2021. No costs. Consequently, connected Miscellaneous Petition is closed.

04.03.2

Index : Yes/No
Internet : Yes/No
mps

To

- 1.The Sub Judge, Tiruttani.
- 2.The Sub Judge, Arakkonam.

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P.T. ASHA, J,

mps

and

04.03.2022

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